


# The Cable Television Networks (Regulation) Act, 1995

(ACT NO. 7 OF 1995)

[*As on the* 31*st May,* 2026]

## LIST OF AMENDING ACTS

1. The Cable Television Networks (Regulation) Amendment Act, 2000 (36 of 2000).
2. The Cable Television Networks (Regulation) Amendment Act, 2011 (21 of 2011).
3. The *Jan Vishwas* (Amendment of Provisions) Act, 2023 (18 of 2023).

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## LIST OF ABBREVIATIONS USED

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|---|---|---|
| Cl., cls. . . . . | *for* | Clause, clauses. |
| Ins. . . . . | ,, | Inserted. |
| Notifn. . . . . | ,, | Notification. |
| S., ss. . . . . | ,, | Section, sections. |
| Sch. . . . . | ,, | Schedule. |
| Subs. . . . . | ,, | Substituted. |
| w.e.f. . . . . | ,, | with effect from. |

# THE CABLE TELEVISION NETWORKS (REGULATION) ACT, 1995

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# THE CABLE TELEVISION NETWORKS (REGULATION) ACT, 1995

## ACT NO. 7 OF 1995

[25*th March*, 1995.]

An Act to regulate the operation of cable television networks in the country and for matters connected therewith or incidental thereto.

BE it enacted by Parliament in the Forty-sixth Year of the Republic of India as follows:—

## CHAPTER I

## PRELIMINARY

**1. Short title, extent and commencement**.—(*1*) This Act may be called the Cable Television Networks (Regulation) Act, 1995.

(*2*) It extends to the whole of India.

(*3*) It shall be deemed to have come into force on the 29th day of September, 1994.

**2. Definitions.—**In this Act, unless the context otherwise requires,—

[1][(*a*) "authorised officer" means, within his local limits of jurisdiction,—

(*i*) a District Magistrate, or

(*ii*) a Sub-divisional Magistrate, or

(*iii*) a Commissioner of Police,

and includes any other officer notified in the Official Gazette, by the Central Government or the State Government, to be an authorised officer for such local limits of jurisdiction as may be determined by that Government;]

[2][(*ai*) "Authority" means the Telecom Regulatory Authority of India established under sub-section (*1*) of section 3 of the Telecom Regulatory Authority of India Act, 1997 (24 of 1997);

(*aii*) "Broadcaster" means a person or a group of persons, or body corporate, or any organisation or body providing programming services and includes his or its authorised distribution agencies;

(*aiii*) "cable operator" means any person who provides cable service through a cable television network or otherwise controls or is responsible for the management and operation of a cable television network and fulfils the prescribed eligibility criteria and conditions;]

(*b*) "cable service" means the transmission by cables of programmes including re-transmission by cables of any broadcast television signals;

(*c*) "cable television network" means any system consisting of a set of closed transmission paths and associated signal generation, control and distribution equipment, designed to provide cable service for reception by multiple subscribers;

(*d*) "company" means a company as defined in section 3 of the Companies Act, 1956 (1 of 1956);

(*e*) "person" means—

(*i*) an individual who is a citizen of India;

(*ii*) an association of individuals or body of individuals, whether incorporated or not, whose members are citizens of India;

1. Ins. by Act 36 of 2000, s. 2 (w.e.f. 1-9-2000).
2. Subs. by Act 21 of 2011, s. 2, for cl. (*aa*) (w.e.f. 25-10-2011).

[1][(*iii*) a company as defined in section 3 of the Companies Act, 1956 (1 of 1956);]

[2][(*ei*) "post" means a post and includes a pole, tower, standard, stay, strut, cabinet, pillar or any above ground contrivance for carrying, suspending or supporting any network infrastructure facility;]

(*f*) "prescribed" means prescribed by rules made under this Act;

(*g*) "programme" means any television broadcast and includes—

(*i*) exhibition of films, features, dramas, advertisements and serials [3]***;

(*ii*) any audio or visual or audio-visual live performance or presentation,

and the expression "programming service" shall be construed accordingly;

[2][(*gi*) "public authority" means any authority, body or institution of local self-government constituted or established by or under—

(*i*) the Constitution of India;

(*ii*) any law made by Parliament;

(*iii*) any law made by a State Legislature;

(*iv*) any notification issued or order made by the appropriate Government,

and includes any—

(*v*) body owned, controlled or substantially financed; or

(*vi*) non-governmental organisation substantially financed,

directly or indirectly by funds provided by the appropriate Government;]

(*h*) "registering authority" means such authority as the Central Government may, by notification in the Official Gazette, specify to perform the functions of the registering authority under this Act [2][within such local limits of jurisdiction as may be determined by that Government;]

(*i*) "subscriber" means [4][any individual, or association of individuals, or a company, or any other organisation or body] who receives the signals of cable television network at a place [5][indicated by him or it] to the cable operator, without further transmitting it to any other person.

## CHAPTER II

### REGULATION OF CABLE TELEVISION NETWORK

**3. Cable television network not to be operated except after registration**.—No person shall operate a cable television network unless he is registered as a cable operator under this Act.

[6]* * * * *

[7]**[4. Registration as cable operator**.—(*1*) Any person who is desirous of operating or is operating a cable television network may apply for registration or renewal of registration, as a cable operator to the registering authority.

(*2*) The cable operator shall fulfil such eligibility criteria and conditions as may be prescribed and different eligibility criteria may be prescribed for different categories of cable operators.

1. Subs. by Act 21 of 2011, s. 2, for sub-clause (*iii*) (w.e.f. 25-10-2011).
2. Ins. by s. 2, *ibid*. (w.e.f. 25-10-2011).
3. The words "through video cassette recorders or video cassette players" omitted by s. 2, *ibid*. (w.e.f. 25-10-2011).
4. Subs. by s. 2, *ibid*., for "a person" (w.e.f. 25-10-2011).
5. Subs. by s. 2, *ibid*., for "indicated by him" (w.e.f. 25-10-2011).
6. The proviso omitted by s. 3, *ibid*. (w.e.f. 25-10-2011).
7. Subs. by s. 4, *ibid.,* for s. 4 (w.e.f. 25-10-2011).

(*3*) On and from the date of issue of notification under section 4A, no new registration in a State, city, town or area notified under that section shall be granted to any cable operator who does not undertake to transmit or re-transmit channels in an encrypted form through a digital addressable system.

(*4*) An application under sub-section (*1*) shall be made in such form and be accompanied by such documents and fees as may be prescribed.

(*5*) On receipt of the application, the registering authority shall satisfy itself that the applicant has furnished all the required information prescribed under sub-section (*4*) and on being so satisfied, register the applicant as a cable operator and grant him a certificate of registration or renew its registration, as the case may be, subject to such terms and conditions as may be prescribed under sub-section (*6*):

Provided that the registering authority may, if it is satisfied that the applicant does not fulfil the eligibility criteria and conditions prescribed under sub-section (*2*) or the application is not accompanied by necessary documents or fees as prescribed under sub-section (*4*), and for reasons to be recorded in writing, by order, refuse to grant its registration or renewal, as the case may be, and communicate the same to the applicant:

Provided further that the applicant may prefer an appeal against the order of the registering authority refusing grant or renewal of registration to the Central Government.

(*6*) Without prejudice to the compliance of eligibility criteria for registration of cable operators, the Central Government may prescribe, having regard to the interests of the sovereignty and integrity of India, the security of the State, friendly relations with foreign States, public order, decency or morality, foreign relation or contempt of court, defamation or incitement to an offence, such terms and conditions of registration including additional criteria or conditions to be fulfilled by the cable operator.

(*7*) The Central Government may suspend or revoke the registration granted under sub-section (*5*) if the cable operator violates one or more of the terms and conditions of such registration:

Provided that no such order of suspension or revocation shall be made without giving a reasonable opportunity of being heard to the cable operator.]

[1][**4A. Transmission of programmes through digital addressable systems, etc**.—(*1*) Where the Central Government is satisfied that it is necessary in the public interest so to do, it may, by notification in the Official Gazette, make it obligatory for every cable operator to transmit or re-transmit programmes of any channel in an encrypted form through a digital addressable system with effect from such date as may be specified in the notification and different dates may be specified for different States, cities, towns or areas, as the case may be:

Provided that the date specified in the notification shall not be earlier than six months from the date of issue of such notification to enable the cable operators in different States, cities, towns or areas to install the equipment required for the purposes of this sub-section.

(*2*) The Central Government may prescribe appropriate measures and take such steps as it may consider necessary for implementation of the notification issued under sub-section (*1*).

(*3*) If the Central Government is satisfied that it is necessary in the public interest so to do, and if not otherwise specified by the Authority, it may direct the Authority to specify, by notification in the Official Gazette, one or more free-to-air channels to be included in the package of channels forming basic service tier and any one or more such channels may be specified, in the notification, *genre-wise* for providing a programme mix of entertainment, information, education and such other programmes and fix the tariff for basic service tier which shall be offered by the cable operators to the consumers and the consumer shall have the option to subscribe to any such tier:

Provided that the cable operator shall also offer the channels in the basic service tier on a *la carte* basis to the subscriber at a tariff specified under this sub-section.

(*4*) The Central Government or the Authority may specify in the notification referred to in sub-section (*3*), the number of free-to-air channels to be included in the package of channels forming

1. Subs. by Act 21 of 2011, s. 5, for s. 4A (w.e.f. 25-10-2011).

basic service tier for the purposes of that sub-section and different numbers may be specified for different States, cities, towns or areas, as the case may be.

(*5*) It shall be obligatory for every cable operator to publicise the prescribed information including but not limited to subscription rates, standards of quality of service and mechanism for redressal of subscribers' grievances in such manner and at such periodic intervals as may be specified by the Central Government or the Authority for the benefit of the subscriber.

(*6*) The cable operator shall not require any subscriber to have a receiver set of a particular type to receive signals of cable television network:

Provided that the subscriber shall use a digital addressable system to be attached to his receiver set for receiving programmes transmitted on any channel.

(*7*) Every cable operator shall provide such information relating to its cable services and networks in such format and at such periodic intervals to the Central Government or the State Governments or the Authority or their authorised representatives, as may be specified by them from time to time.

(*8*) All actions taken by the Central Government or the Authority in pursuance of the provisions of this section as they stood immediately before the 25th day of October, 2011shall continue to remain in force till such actions are modified as per the provisions of this Act.

*Explanation*.—For the purposes of this section,—

(*a*) "addressable system" means an electronic device (which includes hardware and its associated software) or more than one electronic device put in an integrated system through which signals of cable television network can be sent in encrypted form, which can be decoded by the device or devices, having an activated Conditional Access System at the premises of the subscriber within the limits of authorisation made, through the Conditional Access System and the subscriber management system, on the explicit choice and request of such subscriber, by the cable operator to the subscriber;

(*b*) "basic service tier" means a package of free-to-air channels to be offered by a cable operator to a subscriber with an option to subscribe, for a single price to subscribers of the area in which his cable television network is providing service;

(*c*) "encrypted", in respect of a signal of cable television network, means the changing of such signal in a systematic way so that the signal would be unintelligible without use of an addressable system and the expression "unencrypted" shall be construed accordingly;

(*d*) "free-to-air channel", in respect of a cable television network, means a channel for which no subscription fee is to be paid by the cable operator to the broadcaster for its re-transmission on cable;

(*e*) "pay channel", in respect of a cable television network, means a channel for which subscription fees is to be paid to the broadcaster by the cable operator and due authorisation needs to be taken from the broadcaster for its re-transmission on cable;

(*f*) "subscriber management system" means a system or device which stores the subscriber records and details with respect to name, address and other information regarding the hardware being utilised by the subscriber, channels or bouquets of channels subscribed to by the subscriber, price of such channels or bouquets of channels as defined in the system, the activation or deactivation dates and time for any channel or bouquets of channels, a log of all actions performed on a subscriber's record, invoices raised on each subscriber and the amounts paid or discount allowed to the subscriber for each billing period.

**4B. Right of way for cable operators and permission by public authority**.—(*1*) Subject to the provisions of this Act, any cable operator entitled for providing cable services may, from time to time, lay and establish cables and erect posts under, over, along, across, in or upon any immovable property vested in or under the control or management of a public authority.

(*2*) Any public authority under whose control or management any immovable property is vested may, on receipt of a request from a cable operator permit the cable operator to do all or any of the following acts, namely:—

(*a*) to place and maintain underground cables or posts; and

(*b*) to enter on the property, from time to time, in order to place, examine, repair, alter or remove such cables or posts.

(*3*) The facility of right of way under this section for laying underground cables, and erecting posts, shall be available to all cable operators subject to the obligation of reinstatement or restoration of the property or payment of reinstatement or restoration charges in respect thereof at the option of the public authority.

(*4*) When a public authority in public interest considers it necessary and expedient that the underground cable or post placed by any cable operator under the provisions of this section should be removed or shifted or its position altered, it may require the cable operator to remove it or shift it or alter its position, as the case may be, at its own cost in the time frame indicated by the public authority.

(*5*) The Central Government may lay down appropriate guidelines to enable the State Governments to put in place an appropriate mechanism for speedy clearance of requests from cable operators for laying cables or erecting posts on any property vested in, or under the control or management of, any public authority and for settlement of disputes, including refusal of permission by the public authority.

(*6*) Any permission granted by a public authority under this section may be given subject to such reasonable conditions as that public authority thinks fit to impose as to the payment of any expenses, or time or mode of execution of any work, or as to any other matter connected with or related to any work undertaken by the cable operator in exercise of those rights.

(*7*) Nothing in this section shall confer any right upon any cable operator other than that of user for the purpose only of laying underground cable or erecting posts or maintaining them.]

**5. Programme code**.—No person shall transmit or re-transmit through a cable service any programme unless such programme is in conformity with the prescribed programme code:

[1]* * * * *

**6. Advertisement code**.—No person shall transmit or re-transmit through a cable service any advertisement unless such advertisement is in conformity with the prescribed advertisement code:

[2]* * * * *

**7. Maintenance of register**.—Every cable operator shall maintain a register in the prescribed form indicating therein in brief the programmes transmitted or re-transmitted through the cable service during a month and such register shall be maintained by the cable operator for a period of one year after the actual transmission or re-transmission of the said programmes.

[3][**8. Compulsory transmission of certain channels**.—(*1*) The Central Government may, by notification in the Official Gazette, specify the names of Doordarshan channels or the channels operated by or on behalf of Parliament, to be mandatorily carried by the cable operators in their cable service and the manner of reception and re-transmission of such channels:

Provided that in areas where digital addressable system has not been introduced in accordance with the provisions of sub-section (*1*) of section 4A, the notification as regards the prime band is concerned shall be limited to the carriage of two Doordarshan terrestrial channels and one regional language channel of the State in which the network of the cable operator is located.

(*2*) The channels referred to in sub-section (*1*) shall be re-transmitted without any deletion or alteration of any programme transmitted on such channels.

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1. The proviso omitted by Act 36 of 2000, s. 3 (w.e.f. 1-9-2000).
2. The proviso omitted by s. 4, *ibid*. (w.e.f. 1-9-2000).
3. Subs. by Act 21 of 2011, s. 6, for s. 8 (w.e.f. 25-10-2011).

(*3*) Notwithstanding the provisions of sub-section (*1*), any notification issued by the Central Government or the Prasar Bharti (Broadcasting Corporation of India) in pursuance of the provisions of sub-section (*1*), prior to the 25th day of October, 2011 shall continue to remain in force till such notifications are rescinded or amended, as the case may be.]

**9. Use of standard equipment in cable television network**.—No cable operator shall, on and from the date of the expiry of a period of three years from the date of the establishment and publication of the Indian Standard by the Bureau of Indian Standards in accordance with the provisions of the Bureau of Indian Standards Act, 1986 (63 of 1986), use any [1][equipment or digital addressable system] in his cable television network unless such [1][equipment or digital addressable system] conforms to the said Indian Standard:

[2]* * * * *

**10. Cable television network not to interfere with any telecommunication system**.—Every cable operator shall ensure that the cable television network being operated by him does not interfere, in any way, with the functioning of the authorised telecommunication systems [3][and is in conformity with such standards relating to interference as may be prescribed by the Central Government].

[4][**10A. Inspection of cable network and services**.—(*1*) Without prejudice to the provisions contained in the Indian Telegraph Act, 1885 (13 of 1885) or any other law for the time being in force, the Central Government or its officers authorised by it or authorised agency shall have the right to inspect the cable network and services.

(*2*) No prior permission or intimation shall be required to exercise the right of the Central Government or its authorised representatives to carry out such inspection.

(*3*) The inspection shall ordinarily be carried out after giving reasonable notice except in circumstances where giving of such a notice shall defeat the purpose of the inspection.

(*4*) On being so directed by the Central Government or its authorised officers or agency so authorised by it, the cable operator shall provide the necessary equipment, services and facilities at designated place or places for lawful interception or continuous monitoring of the cable service at its own cost by or under the supervision of the Central Government or its officers or agency so authorised by it.]

## CHAPTER III

### SEIZURE AND CONFISCATION OF CERTAIN EQUIPMENT

[5][**11. Power to seize equipment used for operating cable television network**.—If any authorised officer has reason to believe that the provisions of section 3, section 4A, section 5, section 6, section 8, section 9 or section 10 have been or are being contravened by any cable operator, he may seize the equipment being used by such cable operator for operating the cable television network:

Provided that the seizure of equipment in case of contravention of sections 5 and 6 shall be limited to the programming service provided on the channel generated at the level of the cable operator.]

**12. Confiscation**.—The equipment seized under sub-section (*1*) of section 11 shall be liable to confiscation unless the cable operator from whom the equipment has been seized registers himself as a cable operator under section 4 within a period of thirty days from the date of seizure of the said equipment.

**13. Seizure or confiscation of equipment not to interfere with other punishment**.—No seizure or confiscation of equipment referred to in section 11 or section 12 shall prevent the infliction of any punishment to which the person affected thereby is liable under the provisions of this Act.

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1. Subs. by Act 21 of 2011, s. 7, for "equipment" (w.e.f. 25-10-2011).
2. The proviso omitted by s. 7, *ibid*. (w.e.f. 25-10-2011).
3. Ins. by s. 8, *ibid*. (w.e.f. 25-10-2011).
4. Ins. by s. 9, *ibid*. (w.e.f. 25-10-2011).
5. Subs. by s. 10, *ibid*. for s. 11 (w.e.f. 25-10-2011).

**14. Giving of opportunity to the cable operator of seized equipment**.—(*1*) No order adjudicating confiscation of the equipment referred to in section 12 shall be made unless the cable operator has been given a notice in writing informing him of the grounds on which it is proposed to confiscate such equipment and giving him a reasonable opportunity of making a representation in writing, within such reasonable time as may be specified in the notice against the confiscation and if he so desires of being heard in the matter:

Provided that where no such notice is given within a period of ten days from the date of the seizure of the equipment, such equipment shall be returned after the expiry of that period to the cable operator from whose possession it was seized.

(*2*) Save as otherwise provided in sub-section (*1*), the provisions of the Code of Civil Procedure, 1908 (5 of 1908) shall, so far as may be, apply to every proceeding referred to in sub-section (*1*).

**15. Appeal**.—(*1*) Any person aggrieved by any decision of the court adjudicating a confiscation of the equipment may prefer an appeal to the court to which an appeal lies from the decision of such court.

(*2*) The appellate court may, after giving the appellant an opportunity of being heard, pass such order as it thinks fit confirming, modifying or revising the decision appealed against or may send back the case with such directions as it may think fit for a fresh decision or adjudication, as the case may be, after taking additional evidence if necessary.

(*3*) No further appeal shall lie against the order of the court made under sub-section (*2*).

[1][CHAPTER IV

PENALTIES

**16. Penalty for contravention of provisions of this Act**.—(*1*) Whoever contravenes any of the provisions of this Act shall be liable,—

(*a*) for the first contravention with advisory, or censure, or warning, or a penalty which may extend to twenty thousand rupees, or with both;

(*b*) for every subsequent contravention within a period of three years, with advisory, or censure, or warning, or a penalty which may extend to one lakh rupees, or with both,

by such designated officer, as may be prescribed.

(*2*) The designated officer, may, for the reasons to be recorded in writing, by order, impose penalty referred to in sub-section (*1*):

Provided that in cases of more than three contraventions over a period of three years, the designated officer, in addition to penalty referred to in sub-section (*1*), may, for the reasons to be recorded in writing, by order, suspend or revoke the registration granted:

Provided further that no order by the designated officer under this sub-section shall be made without giving a reasonable opportunity of being heard.

(*3*) Whoever aggrieved by the order made under sub-section (*2*), may prefer an appeal to the Secretary to the Government of India or such other officer authorised by him:

Provided that no such appeal shall be admissible after the expiry of thirty days from the date of receipt of such order:

Provided further that an appeal may be entertained after the expiry of the period of thirty days, if he is satisfied that the appellant was prevented by sufficient cause from preferring the appeal in time.]

**17. Offences by companies**.—(*1*) Where an offence under this Act has been committed by a company, every person who, at the time the offence was committed, was in charge of, and was responsible to, the company for the conduct of the business of the company, as well as the company, shall

1. Subs. by Act 18 of 2023, s. 2 and Sch., for CHAPTER IV (w.e.f. 3-10-2023).

be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly:

Provided that nothing contained in this sub-section shall render any such person liable to any punishment, if he proves that the offence was committed without his knowledge or that he had exercised all due diligence to prevent the commission of such offence.

(*2*) Notwithstanding anything contained in sub-section (*1*), where any offence under this Act has been committed by a company and it is proved that the offence has been committed with the consent or connivance of, or is attributable to any negligence on the part of, any director, manager, secretary or other officer of the company, such director, manager, secretary or other officer shall also be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

*Explanation*.—For the purposes of this section,—

(*a*) "company" means any body corporate and includes a firm or other association of individuals; and

(*b*) "director" in relation to a firm means a partner in the firm.

**18. Cognizance of offences**.—No court shall take cognizance of any offence punishable under this Act except upon a complaint in writing made [1][by any authorised officer].

## CHAPTER V

## MISCELLANEOUS

**19. Power to prohibit transmission of certain programmes in public interest**.—Where [2][any authorised officer], thinks it necessary or expedient so to do in the public interest, he may, by order, prohibit any cable operator from transmitting or re-transmitting [3][any programme or channel if, it is not in conformity with the prescribed programme code referred to in section 5 and advertisement code referred to in section 6 or if it is] likely to promote, on grounds of religion, race, language, caste or community or any other ground whatsoever, disharmony or feelings of enmity, hatred or ill-will between different religious, racial, linguistic or regional groups or castes or communities or which is likely to disturb the public tranquillity.

**20. Power to prohibit operation of cable television network in public interest**.—[4][*1*] Where the Central Government thinks it necessary or expedient so to do in public interest, it may prohibit the operation of any cable television network in such areas as it may, by notification in the Official Gazette, specify in this behalf.

[5][(*2*) Where the Central Government thinks it necessary or expedient so to do in the interest of the—

(*i*) sovereignty or integrity of India; or

(*ii*) security of India; or

(*iii*) friendly relations of India with any foreign State; or

(*iv*) public order, decency or morality,

it may, by order, regulate or prohibit the transmission or re-transmission of any channel or programme.

(*3*) Where the Central Government considers that any programme of any channel is not in conformity with the prescribed programme code referred to in section 5 or the prescribed advertisement code referred to in section 6, it may by order, regulate or prohibit the transmission or re-transmission of such programme.]

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1. Subs. by Act 36 of 2000, s. 7, for certain words (w.e.f. 1-9-2000).
2. Subs. by s. 8, *ibid*., for certain words (w.e.f. 1-9-2000).
3. Subs. by s. 8, *ibid*., for "any particular programme if it is" (w.e.f. 1-9-2000).
4. S. 20 renumbered as sub-section (*1*) thereof by s. 9, *ibid*. (w.e.f. 1-9-2000).
5. Ins. by s. 9, *ibid*. (w.e.f. 1-9-2000).

**21. Application of other laws not barred**.—The provisions of this Act shall be in addition to, and not in derogation of, the Drugs and Cosmetics Act, 1940 (23 of 1940), the Pharmacy Act, 1948 (8 of 1948), the Emblems and Names (Prevention of Improper Use) Act, 1950 (12 of 1950), the Drugs (Control) Act, 1950 (26 of 1950), the Cinematograph Act, 1952 (37 of 1952), the Drugs and Magic Remedies (Objectionable Advertisements) Act, 1954 (21 of 1954), the Prevention of Food Adulteration Act, 1954 (37 of 1954), the Prize Competitions Act, 1955 (42 of 1955), the Copyright Act, 1957 (14 of 1957), the Trade and Merchandise Marks Act, 1958 (43 of 1958), the Indecent Representation of Women (Prohibition) Act, 1986 (60 of 1986) [1][, the Consumer Protection Act, 1986 (68 of 1986) and the Telecom Regulatory Authority of India Act, 1997 (24 of 1997)].

**22. Power to make rules**.—(*1*) The Central Government may, by notification in the Official Gazette, make rules to carry out the provisions of this Act.

(*2*) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

[2][(*a*) the eligibility criteria for different categories of cable operators under sub-section (*2*) of section 4;]

[3][(*aa*) the form of application, documents to be accompanied and the fees payable under sub-section (*4*) of section 4;]

[4][(*aaa*) the terms and conditions of registration under sub-section (*6*) of section 4;]

[5][(*aaaa*) the appropriate measures under sub-section (*2*) of section 4A for implementation of the notification under sub-section (*1*) of that section;]

(*b*) the programme code under section 5;

(*c*) the advertisement code under section 6;

(*d*) the form of register to be maintained by a cable operator under section 7;

[5][(*da*) the specifications of interference standards for interfering with any telecommunication system under section 10;]

[6][(*db*) the designated officer under sub-section (*1*) of section 16;]

(*e*) any other matter which is required to be, or may be, prescribed.

(*3*) Every rule made under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

**23. Repeal and savings**.—(*1*) The Cable Television Networks (Regulation) Ordinance, 1995 (Ord. 3 of 1995) is hereby repealed.

(*2*) Notwithstanding such repeal, anything done or any action taken under the said Ordinance, shall be deemed to have been done or taken under the corresponding provision of this Act.

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1. Subs. by Act 21 of 2011, s.11, for "and the Consumer Protection Act, 1986 (68 of 1986)" (w.e.f. 25-10-2011).
2. Subs. by s. 12, *ibid*., for cl. (*a*) (w.e.f. 25-10-2011).
3. Subs. by s. 12, *ibid*., for cl. (*aa*) (w.e.f. 25-10-2011).
4. Subs. by s. 12, *ibid*., for cl. (*aaa*) (w.e.f. 25-10-2011).
5. Ins. by s. 12, *ibid*. (w.e.f. 25-10-2011).
6. Ins. by Act 18 of 2023, s. 2 and Sch. (w.e.f. 3-10-2023).

## STATEMENT OF OBJECTS AND REASONS

There has been a haphazard mushrooming of cable television networks all over the country during the last few years as a result of the availability of signals of foreign television networks *via* satellites. This has been perceived as a "cultural invasion" in many quarters since the programmes available on these satellite channels are predominantly western and totally alien to our culture and way of life. Since there is no regulation of these cable television networks, lot of undesirable programmes and advertisements are becoming available to the viewers without any kind of censorship.

2. It is also felt that the subscribers of these cable television networks, the programmers and the cable operators themselves are not aware of their rights, responsibilities and obligations in respect of the quality of service, technical as well as content-wise, use of material protected by copyright, exhibition of uncertified films, protection of subscribers from anti-national broadcasts from sources inimical to our national interest, responsiveness to the genuine grievances of the subscribers and a perceived willingness to operate within the broad framework of the laws of the land, e.g., the Cinematograph Act, 1952, the Copyright Act, 1957, Indecent Representation of Women (Prohibition) Act, 1986.

3. It is, therefore, considered necessary to regulate the operation of cable television networks in the entire country so as to bring about uniformity in their operation. It will thus enable the optimal exploitation of this technology which has the potential of making available to the subscribers a vast pool of information and entertainment.

4. The Bill seeks to achieve the above objects.

K. P. SINGH DEO.

NEW DELHI;

*The* 23*rd July,* 1993.